

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
May 7, 2026  
8:30 a.m./1:30 p.m.

**7. SAMANTHA MANN V. ARJUN SINGH MANN**

**25FL0539**

Respondent filed a Request for Order (RFO) on March 6, 2026, seeking a court order for genetic testing to determine biological parentage of the minor child. Petitioner was served by mail with some, but not all, of the required documents.

Petitioner filed a Responsive Declaration on April 22, 2026. There is no Proof of Service for this document. As such, the court cannot consider it.

Parties are ordered to appear for the hearing to determine whether there is a waiver of the defects in service.

**TENTATIVE RULING #7: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.**

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**8. JUSTIN SIMARRO V. YAJAIRA SIMARRO**

**PFL20200099**

On February 3, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. It was served on February 1, 2026.

On March 6, 2026, Respondent filed a declaration for the mediator. It was served on March 6<sup>th</sup>.

The parties attended Child Custody Recommending Counseling (CCRC) on March 12, 2026. They were unable to reach any agreements therefore a report with recommendations was prepared and mailed to the parties on April 14, 2026.

Respondent filed another declaration on April 23<sup>rd</sup>, it was served on April 24<sup>th</sup>.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent is requesting sole legal and sole physical custody of the minor.

After reviewing the filings as outlined above, the court finds the recommendations in the April 14, 2026 CCRC report to be in the best interests of the minor with the exception of the Parenting Time section and the section titled Alcohol or Substance Abuse. The court is not adopting those two sections; the remaining sections are adopted as the orders of the court. The parties are to continue the visitation schedule that they are currently practicing – Petitioner to have the minor every other Monday at 6:00 pm to Wednesday at 12:00 pm and Friday at 6:00 pm to Sunday at 12:00 pm.

The court is declining to go to a week on/week off schedule as the court is concerned with Petitioner's clear manipulation of the child and his discussions of the court proceedings with the child. Additionally, regarding the knife, while the court understands that the minor has been taught to use it as a tool while working on Petitioner's property, the problem is that Petitioner has now allowed the minor to have access to the knife twice while unsupervised. The lack of supervision over the minor which resulted in him bringing the knife to school once and to an extracurricular event the second time is concerning. Whether or not the minor should be allowed to use the knife for projects at home is a difference in parenting styles. Allowing the minor to bring the knife to school and sporting events while unsupervised is a safety concern. Whether Petitioner allowed the minor to take the knife unsupervised, or if the minor took the knife from Petitioner's truck without Petitioner knowing, the fact remains that Petitioner was not sufficiently supervising the minor to ensure that he did not have access to an item that poses a risk to his safety. As